

Suresh Singh v. Managing Director, Kanpur Electricity Supply Co. Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 September 2013 · WRIT - C No. 51222 of 2013 · **Assessment set aside; EE to consider objection and decide afresh.**

HEADNOTE

When a consumer objects to a provisional assessment, the Executive Engineer must apply his mind to the objection before finalizing the assessment under the U.P. Electricity Supply Code, 2005. A mechanical proforma order that merely fills figures and does not consider the objection cannot be sustained. The 4 May 2013 assessment against Suresh Singh was set aside; the Executive Engineer was directed to consider the objection and decide the final assessment within four weeks.

FACTUAL SUMMARY

On an inspection dated 4 March 2013, Kanpur Electricity Supply Company issued a provisional assessment notice dated 16 March 2013 to the petitioner, Suresh Singh. He filed a detailed objection dated 16 April 2013 before the Executive Engineer. By order dated 4 May 2013 the Executive Engineer finalized the assessment on a printed proforma by filling in figures. The order acknowledged receipt of the objection but did not consider it. Singh sought a writ quashing that final assessment.

REUSABLE CONSTRUCTIONS

1. When an objection is filed to a provisional assessment, the assessing officer must apply his mind to and consider that objection before finalizing the assessment. ¶ 1
2. A final assessment passed on a printed proforma by merely filling figures, without considering the consumer's objection, is a mechanical order without application of mind and cannot be sustained. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::assessment

consideration of objection before final assessment

HOLDING

When an objection is filed to a provisional assessment, the Executive Engineer is obliged to apply his mind to and consider that objection before finalizing the assessment. An assessment finalized on a printed proforma by merely filling figures, which acknowledges receipt of the objection but does not consider it, is a mechanical order without application of mind and cannot be sustained under the U.P. Electricity Supply Code, 2005 mechanism for finalizing assessment. The 4 May 2013 assessment is set aside and the Executive Engineer is directed to consider the objection and decide the final assessment within four weeks of production of the order. ¶ 1

FLAG judgment invokes the 2005 Code mechanism for finalizing assessment without citing a clause number

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE FINAL ASSESSMENT

The assessment was set aside only for non-consideration of the objection; the Executive Engineer was directed to decide afresh. ¶ 1